

PETITION - WYOMING TRAFFICKING-VICTIM VACATUR PETITION UNDER Sec. 6-2-708

IN THE COURT
(the Wyoming court that entered the conviction)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

WYOMING TRAFFICKING-VICTIM VACATUR PETITION UNDER Sec. 6-2-708

A. WHAT THE COMMITTED RECORD ESTABLISHES ABOUT THIS ROUTE

This petition is brought on the route the committed route contract records as "Human-trafficking-victim vacatur", under Wyo. Stat. Sec. 6-2-708(c).

The compiled Wyoming profile records the substance of this route as follows. Wyoming has a separate victim/survivor route. A human-trafficking victim is not criminally liable for commercial sex acts or other criminal acts committed as a direct result of, or incident to, being a trafficking victim. At any time after conviction, the court that entered the conviction may vacate it if the person's participation in the offense resulted from being a victim. Official documentation creates a presumption, but is not required. ("https://law.justia.com/codes/wyoming/title-6/chapter-2/article-7/section-6-2-708/")

The committed contract records the timing of this route as: available at any time after entry of the covered conviction.

The committed contract records these conditions on the route: Participation in the offense resulted from trafficking victimization; Statutory evidentiary and offense requirements satisfied.

B. THE PETITIONER

Name: Maria-Alejandra O'Shaughnessy-Whitfield

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself, never from memory.

[C1 - exact conviction] Exact conviction?

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[C2 - conviction date] Conviction date?

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[C3 - trafficking period] Trafficking period?

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[C4 - causal nexus] Causal nexus?

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[C5 - official documentation if available] Official documentation if available?

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[C6 - alternative evidence] Alternative evidence?

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[C7 - other counts] Other counts?

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.....

[C8 - requested vacatur effect] Requested vacatur effect?

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D. THE REQUEST

The petitioner asks the Court to vacate the conviction described above under Wyo. Stat. Sec. 6-2-708.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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39501-2214

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Route: obligation:runtime-only:WY:human-trafficking-victim-vacatur-w-s-6-2-708

FILING INSTRUCTIONS - WYOMING TRAFFICKING-VICTIM VACATUR PETITION UNDER Sec. 6-2-708

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

FILING INSTRUCTIONS - WYOMING TRAFFICKING-VICTIM VACATUR PETITION UNDER Sec. 6-2-708

WHAT THIS ROUTE IS, AND WHO RUNS IT

The committed route contract records this route as "Human-trafficking-victim vacatur", under Wyo. Stat. Sec. 6-2-708(c), with outcome mode "participant_packet".

The committed contract names the packet components for this route as: Petition to vacate; Nexus evidence. This packet composes the filing pages; anything on that list that is a RECORD rather than a pleading is a document you obtain and file with the petition.

Who runs it: The participant petitions the court that entered the conviction, and that court decides. The compiled profile records the timing plainly - "At any time after conviction" - and records a handling rule this packet follows to the letter: "Wilma trauma rule: Ask only what is necessary:" and "Then route to manual/legal review. Do not require graphic details."

WHAT YOU DO

- Read the stop conditions before anything else.
- If you have official documentation, the compiled profile records that it creates a presumption - but the same record says it is NOT required, and the committed contract says the intake must permit alternative nexus evidence.
- Fill only the labelled items. Nothing on any page asks for graphic detail, and the compiled record's own rule is that none should be required.

WHAT YOU DO NOT DO

- Do not write an account of what was done to you on any page of this packet. Nothing here asks for one, and the compiled record's own instruction is that this route goes to legal aid or an attorney.
- Do not file anything before you have thought about what becomes public when you do. A court file is a public record unless something makes it otherwise, and nothing in this packet makes it otherwise.
- Do not assume you need official documentation. The compiled profile records that it creates a presumption but is not required, and the committed contract records that alternative nexus evidence must be permitted.
- Do not import a waiting table from another Wyoming route. The committed contract says in terms that no nonconviction, misdemeanor, felony or juvenile waiting table may be imported here, and that relief is available at any time after the conviction.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

The compiled Wyoming profile this packet binds carries a Route/Fee table, and this route has its own line in it: "Human-trafficking victim vacatur - Verify with clerk; statute is a motion route, not a standard expungement filing-fee route." So no amount is established for this route, and the reason no amount is established is recorded: this is a motion in the court that entered the conviction, not one of Wyoming's standard expungement filings. The other four lines of that table are keyed to other sections - W.S. 7-13-1401 at \$0, 7-13-1501 at \$100, 7-13-1502 at \$300 and 14-6-241 at \$0 - and none of them is this route, so this packet takes no figure from any of them. If a clerk quotes you the \$300 felony-expungement fee, this petition is not a 7-13-1502 expungement. No committed record this packet binds states a fee waiver for this route. The office that answers both questions is the office of the clerk of the Wyoming court that entered the conviction. Ask before you go, because a filing you cannot pay for is a filing you cannot make.

WHO MUST BE SERVED, AND WHO IS NOTIFIED

No committed record this packet binds states who must be served on this route, or how. The office that answers it is the office of the clerk of the Wyoming court that entered the conviction.

WHEN TO STOP AND GET HELP INSTEAD

- ****this is the first thing the committed record says about this route:**** the compiled Wyoming profile's own handling rule is to ask only what is necessary and then "route to manual/legal review. Do not require graphic details.";
- the facts that establish the connection are yours to tell and yours alone. No page in this packet asks for an account of what was done to you, and nothing here should be written out for anyone who has not been engaged to act for you;
- your own safety is in question, now or once a filing becomes a public court record;
- there are other counts on the same case, or other cases - every committed contract in this group records other counts as a fact the route must collect;
- any immigration question is involved.

Route: obligation:runtime-only:WY:human-trafficking-victim-vacatur-w-s-6-2-708